

The complaint

Mrs B has complained about Covea Insurance plc's decision to reject a claim she made for storm damage under her home and buildings insurance policy.

What happened

Mrs B's roof was damaged during a named storm in November 2021 and this led to water ingressing into her home. She made a claim to her insurer. Covea.

Covea rejected Mrs B's claim as it said the cause of damage to the roof was due to wear and tear and had occurred gradually. It agreed that storm conditions had occurred at the time of the damage, but it said the storm had highlighted existing maintenance issues with the roof. Covea said it wouldn't meet Mrs B's claim for internal damage for the same reason.

Mrs B didn't agree and asked us to look at her complaint. Our Investigator thought Covea had acted reasonably.

Mrs B doesn't agree and wants an ombudsman to decide. In summary she says:

- Covea failed to consider the opinion of a builder and roofer who inspected and repaired her roof. They both said the damage was caused by a storm and not by wear and tear.
- The damage to her property from the named storm occurred at the front of the property but Covea has focused on the condition of the roof at the rear which wasn't affected by the storm.
- There were several further named storms over the following three months but no further damage occurred. Mrs B says this shows the roof was in good condition and the damage was caused by storm conditions.
- Covea should have considered a claim for the internal damage under the accidental damage section of cover.

So Mrs B wants an ombudsman to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Insurers provide cover for specified insured perils such as storm, flood or theft. This means insurers don't provide cover for every eventuality. Covea – like most if not all other insurers – doesn't provide cover for damage caused gradually.

Mrs B says the damage to her property was caused by a storm. We ask three questions when considering storm damage claims to help decide whether an insurer has acted in a fair and reasonable way. These are:

- Do we agree that storm conditions occurred on or around the date the damage is said to have happened?
- If so, is the damage being claimed for consistent with damage that a storm typically causes? and;
- Were storm conditions the main cause of the damage?

If the answer to all these questions is 'yes' then the claim is likely to succeed. But, if the answer to any of the above questions is 'no' - the claim for storm damage is unlikely to be covered.

There's no dispute that storm conditions occurred at the time of the event. So the answer to the first question is 'yes'.

The damage is consistent with damage a storm typically causes. So the answer to the second question is also 'yes'.

Mrs B made a claim to Covea for water ingress to her home a month before she made a claim for storm damage - in October 2021. Covea instructed an agent to assess whether the claim was valid under the policy. The agent who attended declined the claim - which Mrs B accepted. A representative on behalf of Mrs B says Mrs B arranged for a contractor to carry out repairs to the porch roof and this had stopped further water ingress.

Covea has provided a copy of that report from October 2021. Mrs B says the photos the contractor - and Covea - is relying on to decline her claim show only one general photo of the front pitch of her roof. She says the damage was to the front where there was little or no visible damage (to the roof) prior to the storm.

I can see that the agent took a number of photos of the main roof from the front of Mrs B's home in October 2021. The agent reported the following:

"Inspection of the main roof, the roof is a slate roof and shows signs of deterioration and there is a number of previous repairs. Silicon has been used to seal the slate, near the ridge there has been a previous repair and two slates have slipped."

Mrs B says the inspection in December 2021 of fallen roof tiles which the Surveyor commented on included damaged tiles from other homes in the area that had been piled up together. I don't have any way of corroborating this. When the agent visited Mrs B's property, the roof was covered with tarpaulin as part of interim repairs that had been carried out.

I've reviewed the information provided by two tradesmen as to the condition of Mrs B's roof. But I find the photos and report provided by the agent in October 2021 to carry more weight in this case. I think they show the condition of Mrs B's roof a month before the storm damage - and with their comments - that it was showing signs of deterioration with slipped slates.

As Covea excludes cover for damage cause gradually or by wear and tear, I think it's decision to decline the claim for storm damage was reasonable. I think the answer to the final question is 'no' as I think Covea has reasonably shown that storm conditions highlighted an existing issue.

Mrs B says Covea should have met her claim for internal damage under the accidental damage part of cover under her policy.

Covea provides a definition of Accidental Damage in the policy as: *"Unexpected physical damage caused by unidentifiable external means."* Under the general exclusions Covea says it doesn't provide cover for damage caused by wear and tear and maintenance.

I'm sorry to read of the impact the storm damage has had on Mrs B and her family. But from the information available to me, I think Covea acted reasonably and in line with the policy when it rejected her claim. So this means I'm not asking it to do any more.

My final decision

My final decision is that I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mrs B to accept or reject my decision before 9 January 2023.

Geraldine Newbold
Ombudsman